

1 First he claims that he was pushing or kick
2 scooting an inoperable Lime scooter.

3 You saw from his complaint that was filed
4 four years ago and from discovery responses that were
5 served in December of 2021 --

6 MR. ROSARIO: Objection hearsay.

7 THE COURT: Overruled.

8 MS. NAVARATNASINGHAM: -- that Mr. Rosario
9 admits to riding a Lime scooter.

10 In fact, you saw on body cam footage where
11 Mr. Rosario himself told officers that: I was riding
12 a Lime scooter going five to ten miles per hour.

13 It has been four years and there has not been
14 any changes made to Mr. Rosario's complaint where he
15 admits to riding a Lime scooter.

16 Why does Mr. Rosario need to change his
17 story?

18 He needs you to believe that he was --

19 MR. ROSARIO: Objection, speculation.

20 THE COURT: Overruled. This is improper,
21 sir.

22 MR. ROSARIO: Oh, what she is doing or what I
23 am doing?

24 THE COURT: What you are doing.

25 MR. ROSARIO: Okay.

26 THE COURT: If you believe she misstates the
27 evidence, you may raise an objection, as she did with
28 you.